

23NWCV01111 23NWCV01111

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Case Number: 23NWCV01111 Hearing Date: July 21, 2026 Dept: L

Defendant/Plaintiff/Cross-Defendant

Dan Kloss' Motion for Trial Preference is DENIED without prejudice.

Moving party to give notice.

Background

This is an unlawful detainer case

("UD Action") regarding real property located at 10700-10712 Sessler Street, South Gate, CA 90280 ("Subject Property"). On April 12, 2023, Plaintiff Medline Management Corporation ("MEDLINE") filed this action against Defendants Dan Kloss and Ioana Kloss, doing business as CNC Aero Machining.

On April 9, 2024, this case was consolidated with a related case titled Dan Kloss vs Jamal Dawood, et al., LASC Case No. 23NWCV02306 ("Title Action"). (4/9/24 Minute Order.). The Title Action was filed on April 12, 2023. A First Amended Complaint (FAC) was filed in that action on April 18, 2024. The FAC alleges that, in 2021, Defendants Jamal Dawood, Christine Armani-Dawood, Quantum Properties LLC, and Does 1 to 100 fraudulently induced KLOSS to grant his one-half interest in the Subject Property via a Grant Deed to Quantum Properties LLC ("Grant Deed") in order to "safeguard" his interest. (FAC, ¶ 16.) In return, Defendants issued an LLC membership certification transferring a one-half interest in Quantum Properties LLC to Precision Forging Dies, Inc. However, the membership interest was intended to be transferred to KLOSS, not Precision Forging Dies, Inc. Through the action, KLOSS seeks "to cancel and rescind the fraudulently obtained Grant Deed or alternative, to involuntarily dissolve the LLC and have Plaintiff's one-half interest in the Property transferred back to Plaintiff." (FAC, ¶ 28.)

The Title Action FAC alleges the following causes of action:

1.
Cancellation Of Written Instrument (Civ. Code § 3412);
2.
Fraud;
3.
Negligent Misrepresentation;
4.
Breach Of Oral Contract;
5.
Financial Elder Abuse;
6.
Slander Of Title;
7.
Intentional Infliction of Emotional Distress;
8.
Unfair Business Practices;
9.
Declaratory Relief; and
10.
Involuntary Dissolution.

Defendants Commercial Funding, LLC, Colony Capital Management LLC, Colony Capital LLC, and Shore Pine LLC were later named as Does 1 to 4, respectively.

On May 23, 2024,

Defendant/Cross-Complainant Quantum Properties LLC ("QUANTUM") filed a Cross-Complaint in the Title Action against Cross-Defendants Dan Kloss and Ioana Kloss, doing business as CNC Aero Machining, Anca Tiplea, and Roes 1 to 20.

On February 25, 2025, QUANTUM filed the First Amended Cross-Complaint (FACC), adding C&C Aerol Machining and Aerospace Machining Company, Precision Forging Dies, Inc. as Cross-Defendants. On May 29, 2025, QUANTUM filed the Second Amended Cross-Complaint.

On August 1, 2025, Defendant Commercial Funding, LLC filed a Cross-Complaint in the Title Action.

Defendant/Plaintiff/Cross-Defendant Dan Kloss (hereinafter, "Kloss") now moves for a trial preference.

Plaintiff Medline Management Corporation, Defendants/Cross-Complainants Quantum Properties, LLC and Commercial Funding, LLC, and Defendants Jamal Dawood, Christine Armani Dawood, Colony Capital, LLC, Commercial Funding, LLC, Colony Capital Management, LLC, Shore Pine, LLC and Colony Capital, LLC (hereinafter, "Opposing Parties") oppose the Motion.

Legal Standard

"On petition of any party over 70, [Code of Civil Procedure] section 36, subdivision (a), provides that the granting of calendar preference is mandatory in some circumstances." (Fox v. Superior Court ("Fox") (2018) 21 Cal.App.5th 529, 533.) A court must grant a trial preference under Code Civil Procedure section 36, subdivision (a) where the following two factors are present: (1) the party has a substantial interest in the action as a whole; and (2) the health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. (Ibid.)

Where a motion for trial preference is granted, the clerk shall set the case for trial not more than 120 days from that date. (Koch-Ash v. Superior Court (1986) 180 Cal.App.3d 689, 694.)

Discussion

Kloss requests a trial preference

under Code of Civil Procedure section 36, subdivision (a). Kloss is currently 77 years old. (Kloss Decl., ¶ 3.) Kloss has a substantial interest in the action as the sole plaintiff in the Title Action. Further, Kloss' health is such that a preference is necessary to prevent prejudice to his interest in the litigation. Kloss' counsel has reviewed a letter from Dr. Sandy Liu, Kloss' oncologist at City of Hope hospital, where he is actively receiving treatment. (Zuetel Decl., ¶¶ 5-7.) Based on the letter, Plaintiff has been diagnosed with metastatic prostate cancer with small cell neuroendocrine transformation, with metastasis to the liver and bone. (Zuetel Decl., ¶ 6.) Kloss argues that the aggressive nature of his condition, his ongoing treatment, his symptoms, and the risk of further decline create a risk that a delay in trial will prejudice his ability to meaningfully participate in the case, assist counsel, provide testimony, and protect his interests at trial. (Zuetel Decl., ¶¶ 11,14-18.)

Opposing parties argue that Kloss

has failed to meet his burden under the mandatory provision of Code of Civil Procedure section 36, subdivision (a) or the discretionary provision of subdivision (d).

Subdivision (d) states the

following: "In its discretion, the court may also grant a motion for preference that is accompanied by clear and convincing medical documentation that concludes that one of the parties suffers from an illness or condition raising substantial medical doubt of survival of that party beyond six months, and that satisfies the court that the interests of justice will be served by granting the preference."

Opposing parties assert that, in

the Declaration of Kloss' counsel, Dr. Liu opined Kloss "is suffering from a chronic illness that raises substantial medical doubt that he will survive beyond six months." (Zuetel Decl., ¶ 8.) Such statement suggests that Kloss is invoking subdivision (d). However, subdivision (d) requires "clear and convincing medical documentation," which Kloss has not provided. Kloss' counsel then clarifies that this Motion is sought under subdivision (a). (Zuetel Decl., ¶ 8.) If the Motion is solely sought under subdivision (a), Kloss must demonstrate how his health condition necessitates preference to prevent prejudice to his

litigation interest, which he has also failed to do.

Specifically, Opposing Parties

argue that Kloss has failed to establish the necessary causal connection between his health and the need for an expedited trial. Kloss' counsel states that he "is presently able to participate in this litigation." (Zuetel Decl., ¶ 14.) Although Kloss' counsel concludes that "delay creates a substantial risk that Plaintiff's ability to meaningfully participate in trial will be prejudiced" (Zuetel Decl., ¶ 14), counsel does not "does not explain what time frame would allow Kloss to participate effectively, what specific limitations Kloss currently faces, or how those limitations are preventing meaningful participation if trial were scheduled in the ordinary course." (Opp., 8:8-10.) Overall, Kloss fails to demonstrate that his current condition, or his future worsened condition, will impair his ability to participate in the litigation.

If the Court grants the trial

preference, Opposing Parties request that Kloss be made available for the Parties to take his deposition during the week of July 20, 2026. As of the date of this opposition, Kloss' counsel has only confirmed a date to take his client's deposition, but has not yet confirmed a date for the Parties to take depose/cross-examine Kloss. (Crosby Decl., ¶¶ 8-11, Exhs. 1-3.) Additionally, the Parties request that their anticipated motion for summary judgment be scheduled for "no later than October 16, 2026 or 30 days before the trial date, or alternatively a date closer to trial with an order that the Motion may be heard after the motion cut-off date." (Opp., 10:23-25.) Alternatively, the Parties request a trial date in January or February 2027 to allow the Parties to bring dispositive motions and complete discovery.

In reply, Koss clarifies that he is relying on Code of Civil Procedure section 36, subdivision (a). Kloss argues that his counsel's declaration is sufficient to warrant a trial preference. Lastly, Opposing Parties' arguments regarding the status of discovery and anticipated motions have no bearing on the issue of whether to grant a trial preference.

The Court acknowledges Kloss' age and health conditions. However, the Court is not persuaded at this time that Kloss' health is such that he would be prejudiced if a trial preference is not granted.

Kloss' counsel states that he "is presently able to participate in this litigation." (Zuetel Decl., ¶ 14.) Further, Kloss fails to specifically explain 1) how his health currently limits his participation or 2) how his health is

expected to decline such that he will likely be unable to participate in the case in the near future. Kloss' counsel only states so in a conclusory manner. Without more specific evidence, the Court is not convinced that Plaintiff's current and future condition would prevent him from participating in the litigation at this time.

Accordingly, Kloss' Motion for Trial Preference is denied without prejudice.